BEFORE THE WASHINGTON STATE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: NORTH POINT MARKET, LLC d/b/a CAFÉ ALARA 520 BURWELL ST BREMERTON, WA 98337-1421 LICENSEE LICENSE NO. 432286 AVN NO. 2M2038A UBI NO. 604 610 416 001 0002	LCB NO. L-27,659 OAH NO. 04-2022-LCB-01039 FINAL ORDER OF THE BOARD

The above-captioned matter coming on regularly before the Board, and it appearing that:

1. The Liquor and Cannabis Board issued a complaint dated April 18, 2022, alleging that on or between October 2021, through February 2022, the above-named Licensee or an employee thereof failed to adopt or enforce the facemask mandate to prevent the spread of the COVID-19 virus, as required by the Washington State Secretary of Health Order 20-03, *et seq.* of the Secretary of Health; thus, the Licensee engaged in and/or allowed behavior that presented a threat to public safety, in violation of WAC 314-11-015 (3)(c). As a first Group 1 public safety violation, Licensee is subject to a five-day license suspension or $500 monetary penalty in lieu of suspension under WAC 314-29-020.
2. The Licensee made a timely request for a hearing.
3. A Prehearing Conference was schedule for 10:00 a.m. on Thursday, May 19, 2022, before Administrative Law Judge Joni Derifield with the Office of the Administrative Hearings.

4. Members Autumn Bennet and Rochelle Salo appeared and represented the Licensee. Assistant Attorney General Ellen Range appeared and represented the Enforcement Division of the Liquor and Cannabis Board.
5. On June 3, 2022, Enforcement's Motion for Summary Judgment was filed.
6. No response was filed by the Licensee.
7. On July 12, 2022, Administrative Law Judge Joni Derifield entered an Initial Order on Summary Judgment Motion in this matter which sustained the Complaint.
8. No Petition for Review was received.
9. The entire record in this proceeding was presented to the Board for final decision, and the Board having fully considered said record and being fully advised in the premises;

NOW, THEREFORE, IT IS HEREBY ORDERED that the Administrative Law Judge's Facts for Purpose of Summary Judgment, Conclusions of Law and Initial Order are AFFIRMED and adopted as the Findings of Fact, Conclusions of Law and Final Order of the Board.

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IT IS HEREBY FURTHER ORDERED that the liquor license privileges granted to North Point Market, LLC d/b/a Café Alara, License No. 432286, are hereby suspended for a term of five (5) days. In lieu of a license suspension, the Licensee may pay a monetary penalty in the amount of five hundred dollars ($500.00) due within 30 days of this order. If timely payment is not received, the suspension will take place from 11:00 a.m. on Friday, September 30, 2022 until 11:00 a.m. on Wednesday, October 5, 2022. Failure to comply with the terms of this order will result in further disciplinary action.

Payment in reference to this order should be sent to:

Washington State Liquor and Cannabis Board
Financial Division
PO Box 43085
Olympia, WA 98504-3085

DATED at Olympia, Washington this 9 day of August, 2022.

WASHINGTON STATE LIQUOR AND CANNABIS BOARD

Reconsideration. Pursuant to RCW 34.05.470, you have ten (10) days from the mailing of this Order to file a petition for reconsideration stating the specific grounds on which relief is requested. A petition for reconsideration, together with any argument in support thereof, should be filed by either;

1) Electronic Transmission. Email the petition for reconsideration to: lcbadjudicationfax@lcb.wa.gov

2) Mailing or delivering it directly to the Washington State Liquor and Cannabis Board, Attn: Adjudication Proceedings Coordinator, 1025 Union Avenue Southeast, PO Box 43076, Olympia, WA 98504-3076.

A copy shall be sent to all other parties of record and their representatives. Filing means actual receipt of the document at the Board's office. RCW 34.05.010(6). A copy shall also be sent to Jeremy Gelms, Assistant Attorney General, 800 Fifth Avenue, Suite 2000, Seattle WA 98104-3188. Within seven (7) days after service of the petition for reconsideration, any of the other parties may file a response to that petition, or request an extension, with the Liquor and Cannabis Board. Copies of the response must be sent to all other parties and their representatives at the time the response is filed.

A timely petition for reconsideration is deemed to be denied if, within twenty (20) days from the date the petition is filed, the agency does not (a) dispose of the petition or (b) serve the parties with a written notice specifying the date by which it will act on the petition. An order denying reconsideration is not subject to judicial review. RCW 34.05.470(5). The filing of a petition for reconsideration is not a prerequisite for filing a petition for judicial review.

Stay of Effectiveness. The filing of a petition for reconsideration does not stay the effectiveness of this Order. The Board has determined not to consider a petition to stay the effectiveness of this Order. Any such request should be made in connection with a petition for judicial review under chapter 34.05 RCW and RCW 34.05.550.

Judicial Review. Proceedings for judicial review may be instituted by filing a petition in superior court according to the procedures specified in chapter 34.05 RCW, Part V, Judicial Review and Civil Enforcement. The petition for judicial review of this Order shall be filed with the appropriate court and served on the Board, the Office of the Attorney General, and all parties within thirty days after service of the final order, as provided in RCW 34.05.542, or order on petition for

reconsideration, as provided in RCW 34.05.470. If the Appellant withdraws its request for an administrative hearing, then the matter is not subject to judicial review.

Service. This Order was served on you at the date and time indicated on the electronic transmission from the Board. If electronic transmission is not applicable, this Order was served on you the day it was deposited in the United States mail. RCW 34.05.010(19).

Washington State
Liquor and Cannabis Board

August 9, 2022

Autumn Bennet
North Point Market, LLC
d/b/a Café Alara
520 Burwell St
Bremerton, WA 98337

Ellen Range, AAG
GCE Division, Office of Attorney General
Ellen.range@atg.wa.gov

RE: FINAL ORDER OF THE BOARD
Licensee: North Point Market, LLC
Trade Name: Café Alara
License No. 432286
LCB Hearing No. L-27,659
AVN No. 2M2038A
OAH No. 04-2022-LCB-01039
UBI No. 604 610 416 001 0002

Dear Parties:

Please find the enclosed Final Order of the Board and Declaration of Service by Mail in the above-referenced matter. **The applicable monetary penalty is due by Thursday, September 08, 2022**. The address for payments is WSLCB, P.O. Box 43085, Olympia, WA 98504-3085. Please label the check with your License Number and Administrative Violation Notice Number (AVN) listed above.

If you have any questions, please contact me at 360-664-1709.

Sincerely,

Marie Atse

Marie Atse
Adjudicative Proceedings Program Specialist

Enclosures (2)
CC:

Deputy Director Hood, WSLCB Director Office
Director Brady, WSLCB Enforcement
Deputy Chief Rupke, WSLCB Enforcement
Captain Magerl, WSLCB Enforcement
Lieutenant Wheeler, WSLCB Enforcement
Sergeant McFerran, WSLCB Enforcement
Patrick McMillen, WSLCB Enforcement
Kelly Higbee, WSLCB Enforcement
Tarin Mires, WSLCB Enforcement
Andrea Lee, WSLCB Enforcement

WASHINGTON STATE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: NORTH POINT MARKET, LLC d/b/a CAFÉ ALARA 520 BURWELL ST BREMERTON, WA 98337-1421 LICENSEE LICENSE NO. 432286 AVN NO. 2M2038A UBI NO. 604 610 416 001 0002	LCB NO. L-27,659 OAH NO. 04-2022-LCB-01039 DECLARATION OF SERVICE BY MAIL

I certify that I caused a copy of the FINAL ORDER OF THE BOARD in the above-referenced matter to be served on all parties or their counsel of record by US Mail Postage Prepaid via Consolidated Mail Service for Applicants and Licensees and by electronic mail for WSLCB offices and state offices on the date BELOW TO:

NORTH POINT MARKET, LLC d/b/a CAFÉ ALARA 520 BURWELL ST BREMERTON, WA 98337-1421	OFFICE OF THE ATTORNEY GENERAL ELLEN RANGE ASSISTANT ATTORNEY GENERAL ELLEN.RANGE@ATG.WA.GOV

DATED this 9 day of August, 2022, at Olympia, Washington.

Marie Atse

Marie Atse, Adjudicative Proceedings Program Specialist